



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 16, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202207139 (Incident Date: October 20, 2022) regarding Police Officer Matthew Panik, Tax No. 961064 (DADS No. 2023-29612)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the substantiated allegation against Police Officer Panik.

On October 22, 2022, Police Officer Panik responded to a 911 call, regarding an emotionally disturbed person. A male stated his neighbor (the complainant), was screaming on his front lawn while holding a pair of scissors in her hands. Upon Police Officer Panik's arrival, the complainant had left the scene. Concerned for the complainant's safety, Police Officer Panik and his partner canvassed the area and found her at a bus stop. Police Officer Panik was familiar with the complainant due to their numerous prior interactions. Other officers on scene also stated they have been dealing with the complainant for years.

During Police Officer Panik's interaction with the complainant he stated she seemed delusional and angry. After speaking with the complainant, Police Officer Panik made a determination that she might be experiencing a mental health crisis, and Emergency Medical Services (EMS) should evaluate her. Throughout the interaction, Police Officer Panik states to the complainant EMS will check on her just to make sure she is ok. Upon the Patrol Supervisor's arrival to the scene, Police Officer Panik explained he thought the complainant was exhibiting paranoid behavior, believing people are constantly watching her, and that she may require medical intervention. The

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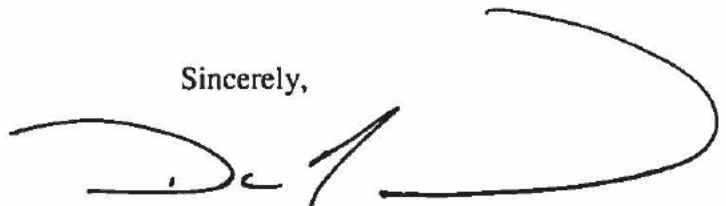
Website: <http://nyc.gov/nypd>

Patrol Supervisor concurred with the decision to have the individual await an evaluation by EMS. Two EMT's spoke with the complainant, and they determined she needed to be taken to the hospital for a psychiatric evaluation. The complainant did not want to go to the hospital, and Police Officer Panik stated she could enter the ambulance voluntarily, or be placed in handcuffs and escorted there. After this, the complainant entered the ambulance.

After a review of the Body Worn Camera footage, the Police Commissioner believes it is clear Police Officer Panik acted out of concern for the complainant's wellbeing. He canvassed the area to locate her and to ensure she received a proper medical evaluation for her safety.

Therefore, considering the totality of the circumstances, the Police Commissioner directs that no disciplinary action be taken against Police Officer Panik for the sole allegation.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office